

Form No.HCJD/C-121
ORDER SHEET
IN THE LAHORE HIGH COURT, LAHORE.
JUDICIAL DEPARTMENT
WP No. 224651 of 2018
Muhammad Ismail
vs
Ruqayya Kausar & another

S.No. of Order/ Proceeding	Date of order/ proceeding	Order with signature of Judge and that of parties or counsel where necessary
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04.04.2019 Mr. Muhammad Afzal Maan, Advocate for petitioner.
Mr. Ali Hussain Mohsin, Advocate for respondent No.1.

Through this constitutional petition, the petitioner has called in question the judgment and decree 29.05.2018 passed by appellate court, whereby the suit for recovery of dowry articles has been decreed to the extent of Rs.2,20,000/- as alternate price of the dowry articles.

2. Learned counsel for the petitioner has argued that the appellate court has wrongly set-aside the judgment and decree passed by the trial court, whereby claim of respondent No.1 ("respondent") was dismissed. Besides, as it was the second marriage of the respondent, therefore, nothing had been given to her by her parents in shape of dowry and dowry articles claimed by the respondent are beyond the financial status and paying capacity of her family.

3. Conversely, learned counsel for the respondent has defended the impugned judgment and decree.

4. Heard. Record perused.

5. Although it has been claimed by the petitioner that nothing was given as dowry articles to the respondent but Column No.18 of the Nikahnama dated 09.10.2015 (Exh-

P5) clearly mentions that in case of divorce, the dowry articles shall be returned to respondent. This condition mentioned in the Nikahnama negates the claim of the petitioner that nothing was given as dowry articles as people may tell a lie but documents cannot. Consequently, to that extent, it is established that dowry articles were given to the respondent at the time of her marriage.

6. So far as the remaining claim of the petitioner relating to alternate price of the dowry articles is concerned, the petitioner has failed to substantiate his claim that no dowry articles were given whereas claim of the respondent is established on record. By taking into consideration the evidence available on record, the appellate court excluded the items mentioned at Serial Nos. 34, 41 to 46, 50 to 54, 74 and 75 from the list of the dowry articles (Exh-P2) and rightly decreed the claim to the extent of the remaining articles and fixed its alternate price as Rs.2,20,000/- which is a finding of fact based on tentative assessment of value of the dowry articles and as no illegality of erroneous exercise of jurisdiction has been pointed out, therefore, no exception can be taken to the same in the given circumstances of the case.

7. For what has been discussed above, this constitutional petition being devoid of any merit is *dismissed*.

(MUZAMIL AKHTAR SHABIR)
JUDGE

Naveed*